



**COUNCIL OF
THE EUROPEAN UNION**

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**ESPACE 83
COMPET 596
IND 170
TRANS 353
COSDP 1187
CSC 85
PESC 1611
CIVCOM 569
CSDP/PSDC 737
RECH 423**

OUTCOME OF PROCEEDINGS

From :	"Competitiveness" Council
No. prev. doc.	17828/1/11 REV 1 ESPACE 78 COMPET 565 IND 156 TRANS 337 COSDP 1153 CSC 83 PESC 1567 CIVCOM 557 CSDP/PSDC 709 RECH 399
Subject:	Council Resolution: "Orientations concerning added value and benefits of space for the security of European citizens"

Delegations will find attached the Council Resolution "Orientations concerning added value and benefits of space for the security of European citizens", as adopted by the "Competitiveness" Council meeting on 6 December 2011, reflecting the orientations endorsed jointly by the European Union and the European Space Agency (ESA) at the Eighth Space Council meeting on 6 December 2011.

RESOLUTION
" Orientations concerning added value and benefits of space
for the security of European citizens"

THE COUNCIL OF THE EUROPEAN UNION

HAVING REGARD TO

- (1) The resolution on "Global challenges: taking full benefit of European space systems", as adopted by the Seventh Space Council meeting on the 25 November 2010;
- (2) The EU Council Conclusions on "Towards a space strategy for the European Union that benefits its citizens" of 31 May 2011; and the communication from the Commission on "Towards a space strategy for the European Union that benefits its citizens", adopted on 4 April 2011;
- (3) The Resolution of the ESA Council at ministerial level on "The role of space in delivering Europe's global objectives" of 26 November 2008;
- (4) The communication from the Commission on Europe 2020 – "A strategy for smart, sustainable and inclusive growth", adopted on 3 March 2010¹;

¹ Doc. 7110/10

- (5) The Framework Agreement between the European Community – which has been succeeded by the European Union – and the European Space Agency (the “Framework Agreement”), which entered into force on 28 May 2004 and to the increasing cooperation between the two parties;
- (6) RECOGNIZING that the EU competence in space, established by the entry into force of the Treaty on the Functioning of the European Union, strengthens the political dimension of space in Europe²;
- (7) EMPHASIZES the role which space systems play to provide information and practical tools for the development and implementation of European policies in the areas of environment, climate change, humanitarian aid, civil protection and crisis management to ensure better protection of people, property, environment and cultural heritage in the event of major natural and man-made disasters;
- (8) STRESSES that space assets can contribute significantly to the objectives of the Common Security and Defence Policy (CSDP); and NOTES in this context the signature of an Administrative Arrangement between the EDA and ESA on 20 June 2011³;
- (9) RECOGNIZING that the completion and exploitation of the Galileo and EGNOS global navigation systems and the Global Monitoring for Environment and Security (GMES) programme will provide decision-makers and other users with advanced and reliable tools targeted to meet European and non-European citizens’ safety and security requirements, notably by interoperability and an integrated use of space applications for crisis management, civil protection and humanitarian assistance;

² Notably articles 4 and 189

³ Doc. 10085/11

- (10) WELCOMING the launch of the first two Galileo satellites on the first Soyuz launch from the “Centre Spatial Guyanais”, Europe’s Spaceport, which represents a significant new step in Europe’s space activities;
- (11) RECALLING that space infrastructure, which is critical for above mentioned reasons, must be protected against risks, both natural, including potential effects of solar storms, and those resulting from human activities (for instance space debris);
- (12) TAKING NOTE of the Commission communication ‘A Budget for Europe 2020’⁴, which makes proposals for the EU Multiannual Financial Framework 2014-2020 (MFF);
- (13) RECOGNIZING that the present orientations of the Space Council are without prejudice to decisions on next MFF;

I. Space for security and sustainable development

- (14) RECALLS that GMES as well as Galileo/EGNOS are European Union flagship programmes under the responsibility and management of the European Commission, and that GMES is also built on a partnership with ESA and their Member States, with the involvement of other relevant European bodies; REAFFIRMS that it is a priority for the EU to ensure the development and exploitation of sustainable GMES services and infrastructures in the medium- and long-term. URGES the European Commission to take the necessary and timely actions to secure the continuity of the programme and to reassure GMES users and stakeholders of its commitment to the GMES programme;

⁴ Doc. 12475/11

- (15) RECOGNIZES that GMES has an important role in ensuring the independent access by Europe to key strategic information supporting many EU policies enshrined in the Treaty, like agriculture, environment, transport, energy, health, civil protection, humanitarian aid and security; and therefore STRESSES the need to ensure continuity and availability of infrastructure and services beyond 2013;
- (16) NOTES that climate change has serious implications for both society and economy, as well as for natural and managed ecosystems, RECOGNIZES that GMES is a major European contribution towards the global efforts for understanding climate change and for both monitoring and mitigating its impacts, and STRESSES that the implementation of a dedicated GMES Climate Change service should complement and interact with other existing services and activities to bring answers to this challenge;
- (17) WELCOMES the effective provision of satellite-based information within the framework of the GMES programme to support crisis operations during recent disasters occurring worldwide; CONSIDERS that GMES has an important role to play as the backbone for an improved European emergency response capacity, in synergy with existing mechanisms; and INVITES the European Commission to further improve access to relevant data and information supplied by national programmes during crisis situations;
- (18) WELCOMES the results achieved by the European Commission in the development of preoperational capabilities for GMES security services, and RECOMMENDS the European Commission in close collaboration with the European External Action Service (EEAS), Member States and relevant EU agencies, such as FRONTEX, EUSC and EMSA, to finalise the definition of, and accelerate the transition towards, fully operational GMES security services in support of EU external actions and border and maritime surveillance, based on user demand;

- (19) CALLS UPON the European Commission, in close consultation with all relevant stakeholders, to propose an organisational framework, including governance, and the setting up of the planned operational services; in particular URGES the European Commission in consultation with all relevant stakeholders to complete the definition of an appropriate data policy for GMES, based on full and open access to information produced by GMES services and data collected through GMES infrastructure, subject to relevant international agreement, security restrictions and licensing conditions, including registration and acceptance of users licenses and which maximizes the use of GMES and build on a well balanced approach between free-of-charge access to certain public data and services and the need to strengthen Earth observations markets in Europe and the growth of existing and emerging European data and data service providing businesses; as well as the governance of the security of GMES components and information;
- (20) CONSIDERS the question of ownership of the GMES Space infrastructure to be of central importance to the future of GMES and CALLS UPON the European Commission and ESA to complete the assessment of this question as soon as possible;
- (21) NOTES the decision of the European Parliament and of the Council on the rules for access to the Public Regulated Service (PRS) provided by the global navigation satellite systems established under the Galileo Programme⁵; and CALLS UPON the European Commission, with the support of the EEAS, and in close cooperation with the Member States and related users communities to define the appropriate measures for ensuring the smooth deployment of the PRS and associated systems, taking full account of national infrastructure, as this will improve EU crisis management capabilities;

⁵ O.J. L 287 4/11/2011 p. 1-8

- (22) RECOGNIZES that satellite communications represent a key capability in any crisis response and crisis management operation, and a highly crucial and scarce resource, especially when ground infrastructures are damaged or destroyed, and RECOMMENDS the European Commission, EEAS and Member States, with the support of EDA, to work towards a secure and guaranteed access to commercial and governmental satellite communications for crisis response and crisis management actors;
- (23) UNDERLINES that the effective management of crisis situations requires the mobilization of appropriate resources as well as appropriate information to use them in an optimal manner, and therefore requires the integration of different space and ground based applications to support coordination of activities, conducted by multiple actors involved in civil protection and humanitarian operations;
- (24) Taking the above into account, CALLS UPON the European Commission, supported by the EEAS, ESA and Member States as appropriate and with the support of EDA, to:
- raise the awareness of potential capabilities of integrating space applications in appropriate systems among potential users,
 - ensure optimal utilization of space solutions within the framework of the European coordination mechanism in the field of civil protection,
 - develop solutions, leading to interoperability of space related technical systems and a coherent framework of operational procedures to use space-based applications for crisis management,
 - furthermore, explore options for miniaturization by using small (micro-, nano- and pico-) satellites to achieve cost reductions;

II. Security and sustainability for space

- (25) NOTES that there are serious threats to space assets and associated ground infrastructures, which may include risks of collision and the impact of space weather; RECOGNIZES the importance of protecting such space assets and services, which are critical to the European economy and policies; and RECOGNIZES the need for an effective Space Situational Awareness (SSA) capability as an activity at European level, inter alia, in order to enhance the safety of European space assets and of its future launches from space debris and other objects in space as well as space weather phenomena; to this end, the European Union should make the widest possible use of assets, competences and skills that are already existing or being developed in Member States, at European level and as appropriate internationally;
- (26) RECOGNIZES the important contribution of the ESA SSA Preparatory Programme; recognizing the dual use nature of such a system and taking into account its particular security dimension, CALLS UPON the European Commission in collaboration with the High Representative, in close cooperation with ESA and Member States, which own such assets and have capacities and in consultation with all actors involved, to come forward with proposals to fully exploit and build on these assets and capacities in order to develop a Space Situational Awareness (SSA) capability as an activity at European level and in that context, to define an appropriate governance and data policy taking care of the high sensitivity of SSA data;
- (27) NOTES that the future operational capability at European level in the field of SSA should cover three segments: surveillance and tracking of orbiting objects, prediction and monitoring of the space weather phenomena and their effects in particular on critical infrastructure and monitoring of Near Earth Objects (NEOs), within the definition of an SSA capability, founded on the approved aggregation⁶ between civil and military SSA user requirements;

⁶ Doc. 15715/11.

- (28) RECOGNIZES that the protection of space assets will require continued research activities in areas such as space weather effects, NEOs and debris tracking and prediction, mitigation and removal; and CALLS UPON the European Commission, ESA and Member States to evaluate appropriate actions to adequately address these issues;
- (29) ACKNOWLEDGES the need to enhance the security, safety and sustainability of all outer space activities. In this context, REITERATES the importance of pursuing discussions at multilateral level on the draft international Code of Conduct for Outer Space Activities with a view to ensuring the adherence to the Code of the largest possible number of States. CONSIDERS, further, that wider access to adequate and reliable information about space activities will represent a confidence building measure, providing a foundation for increased trust with regard to peaceful uses of outer space;
- (30) CONSIDERS that industrial policy for space should take into account the specificities of the space sector and the interest of all Member States to invest in space assets, and aim at the following common objectives: support the European capability to conceive, develop, launch, operate and exploit space systems; strengthen the competitiveness of European industry for both its domestic and export markets; and promote competition and a balanced development and involvement of capacities within Europe; UNDERLINES the need to examine whether appropriate measures may be necessary at European and international level to guarantee the sustainability and economic development of space activities, including those of the European commercial sector;
- (31) In the context of sustainability of space activities, RECALLS⁷ its invitation to all European institutional actors in order to maintain an independent, reliable and cost effective access to space at affordable conditions, to consider as a high priority the use of launchers developed in Europe and to explore issues relating to their possible participation in launcher-related exploitation activities;

⁷ Doc 16864/10

III. Exploration

- (32) RECALLS the discussions at political level among European and international partners during the third Exploration Conference and first meeting of the Exploration International High-Level Platform held in Lucca (Italy) on 10 November 2011 and its Declaration which recognized the benefit from a continued and structured high-level policy dialogue on future space exploration that can help identify potential areas for international cooperation; WELCOMES the offer from the United States to host the next dialogue;
- (33) RECOGNIZES the potential of robotic and human exploration in low-Earth orbit and beyond, supported by an international high-level policy dialogue at government-level, to produce societal, intellectual and economic progress and benefits for citizens. These include creating global partnerships by sharing challenging and peaceful goals; encouraging the advancement of science; fuelling future discoveries; addressing global challenges in space and on Earth through the use of innovative technology; inspiring society and especially the younger generations through collective and individual efforts; and enabling economic expansion and new business opportunities;
- (34) INVITES the European Commission, ESA and Member States to pursue discussions at European level and with international partners with a view to defining a strategy beyond 2020, including the European involvement therein, in preparation of the next dialogue meeting which should take account of European aspirations, priorities and resources.
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